

An Act

ENROLLED HOUSE
BILL NO. 2951

By: Hardin of the House

and

Kern of the Senate

An Act relating to prisons and reformatories; amending 57 O.S. 2021, Section 95, which relates to the delivery of sentenced persons; authorizing the transport of inmates to certain facility; amending 57 O.S. 2021, Sections 502, as amended by Section 2, Chapter 22, O.S.L. 2023, 508, and 509, as last amended by Section 2, Chapter 467, O.S.L. 2025 (57 O.S. Supp. 2025, Sections 502 and 509), which relate to the Oklahoma Corrections Act of 1967; removing and adding correctional centers to certain defined term; updating reference to certain named act; adding correctional centers to list of penal institutions maintained by the Department of Corrections; repealing 57 O.S. 2021, Section 504.7, which relates to the Kate Barnard Community Corrections Center; and providing an effective date.

SUBJECT: Prisons and reformatories

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 57 O.S. 2021, Section 95, is amended to read as follows:

Section 95. A. Any person convicted of an offense against the laws of this state and sentenced to imprisonment that is not to be served in a county jail shall be transported by the sheriff of the county where the person is sentenced, or transported by a designated representative of the sheriff, to the Department of Corrections at the Lexington Assessment and Reception Center, the Mabel Bassett Correctional Center, or other location designated by the Director of the Department of Corrections.

B. Any person convicted of an offense against the laws of this state and sentenced to imprisonment that is not to be served in a county jail and who is not housed in a county jail shall be transported by the detention center, or transported by a designated representative of the detention center, to the Department of Corrections at the Lexington Assessment and Reception Center, the Mabel Bassett Correctional Center, or other location designated by the Director of the Department of Corrections.

C. The sheriff shall deliver the person to the Department at such center together with:

1. A certified copy of the judgment and sentence from the court ordering such imprisonment, unless the judgment and sentence previously has been sent electronically by an authorized clerk of the court;

2. A certificate setting forth the number of days served in the county jail after the pronouncement of judgment and rendering of sentence for the offenses committed;

3. A copy of any medical, dental, or mental health records of the defendant for conditions reviewed or treated while in the custody of the sheriff;

4. Any medication or medical or dental device prescribed for the defendant while in the custody of the sheriff or for a preexisting condition; and

5. A copy of the presentence investigation report, if a report was prepared.

D. The Department of Corrections shall give the sheriff a receipt for each person received into the custody of the Department. The receipt shall be filed by the sheriff in the office of the clerk of the court where the sentence was made.

E. The Department of Corrections shall reimburse the transporting agency as follows:

1. Mileage from the county sheriff's office to the appropriate reception center and back to the county sheriff's office; and

2. Hourly wage reimbursement for the transporting officer for the hours of transport travel and time spent at the reception center based on the transporting officer's normal hourly wage. Reimbursement shall not exceed Thirty Dollars (\$30.00) an hour per officer. Documentation of the officer's hourly wage shall accompany all reimbursement requests to the Department.

The Department of Corrections shall have the authority to promulgate rules and forms for the reimbursement procedures provided in this section.

The Department of Corrections shall submit a quarterly report to the Chair of the Senate Appropriations Committee and Chair of the House of Representatives Appropriations and Budget Committee.

SECTION 2. AMENDATORY 57 O.S. 2021, Section 502, as amended by Section 2, Chapter 22, O.S.L. 2023 (57 O.S. Supp. 2025, Section 502), is amended to read as follows:

Section 502. As used in this title, unless the context otherwise requires:

1. "Board" means the State Board of Corrections;
2. "Department" means the Department of Corrections of this state;
3. "Director" means the Director of the Department of Corrections;
4. "Halfway house" means a private facility for the placement of inmates in a community setting for the purpose of reintegrating into the community inmates who are nearing their release dates. The term shall not include private prisons;
5. "Institutions" means the Oklahoma State Penitentiary located at McAlester, Oklahoma; the Oklahoma State Reformatory located at Granite, Oklahoma; the Lexington Assessment and Reception Center located at Lexington, Oklahoma; the Joseph Harp Correctional Center located at Lexington, Oklahoma; the Jackie Brannon Correctional Center located at McAlester, Oklahoma; the Howard McLeod Correctional Center located at Atoka, Oklahoma; the Mack H. Alford Correctional Center located at Stringtown, Oklahoma; the Jim E. Hamilton Correctional Center located at Hodgen, Oklahoma; the Mabel Bassett Correctional Center located at McCloud, Oklahoma; the R.B.

"Dick" Conner Correctional Center located at Hominy, Oklahoma; the James Crabtree Correctional Center located at Helena, Oklahoma; the Jess Dunn Correctional Center located at Taft, Oklahoma; the John Lilley Correctional Center located at Boley, Oklahoma; ~~the William S. Key Correctional Center located at Fort Supply, Oklahoma;~~ the Dr. Eddie Warrior Correctional Center located at Taft, Oklahoma; the Northeast Oklahoma Community Corrections Center located at Vinita, Oklahoma; the Clara Waters ~~and Kate Barnard~~ Community Corrections ~~Centers Center~~ located at Oklahoma City, Oklahoma; the Community Corrections Centers located at Lawton, Enid, ~~Oklahoma City~~ and Union City; the Charles E. "Bill" Johnson Correctional Center, located east of Alva, Oklahoma; ~~the Southern Oklahoma Resource Center located at Pauls Valley, Oklahoma~~ the Great Plains Correctional Center located at Hinton, Oklahoma; the Allen Gamble Correctional Center located at Holdenville, Oklahoma; the Chief James Smith Correctional Center located at Lawton, Oklahoma; and other facilities under the jurisdiction and control of the Department of Corrections or hereafter established by the Department of Corrections;

6. "Intermediate revocation facility" means a corrections center operated by the Department of Corrections or a private facility or public trust operating pursuant to contract with the Department of Corrections which provides housing and intensive programmatic services for offenders who have violated the terms or conditions of probation as determined by a supervising probation officer. "Intensive programmatic services" offered by the Department of Corrections includes, but shall not be limited to, alcohol and substance abuse counseling and treatment, mental health counseling and treatment and domestic violence courses and treatment programs;

7. "Intermediate sanctions facility" means a community corrections center operated by the Department of Corrections or a private facility or public trust operating pursuant to contract with the Department of Corrections which provides for the housing and programmatic services of offenders such as probation or parole violators or community sentenced offenders placed in the facility for disciplinary sanctions, work release offenders, offenders who need intensive programmatic services, or offenders who have demonstrated positive adjustment while in an institutional setting who need additional programmatic services to enhance their reentry into society upon release from a prison term; and

8. "Private prison contractor" means:

- a. a nongovernmental entity or public trust which, pursuant to a contract with the Department of Corrections, operates an institution within the Department other than a halfway house or intermediate sanctions facility, or provides for the housing, care, and control of inmates and performs other functions related to these responsibilities within a minimum, medium, or maximum security level facility not owned by the Department but operated by the contractor, or
- b. a nongovernmental entity or public trust which, pursuant to a contract with the United States or another state, provides for the housing, care, and control of minimum or medium security inmates in the custody of the United States or another state, and performs other functions related to these responsibilities other than a halfway house or intermediate sanctions facility within a facility owned or operated by the contractor.

SECTION 3. AMENDATORY 57 O.S. 2021, Section 508, is amended to read as follows:

Section 508. The Director, subject to the approval of the Board, is hereby authorized to create divisions within the Department of Corrections as ~~he~~ they may deem appropriate to effectively manage the Department. The divisions shall be under the immediate supervision and control of the Director. The Director is hereby authorized to appoint Deputy Directors for the divisions of the Department, who shall be exempt from the ~~Merit System of Personnel Administration Act~~ Civil Service and Human Capital Modernization Act, and to fix the salaries and duties thereof; provided, the salary ranges of said Deputy Directors shall be set by the Legislature in the Department's annual appropriation. The Deputy Directors shall have at least a master's degree from an accredited college or university and at least four (4) years of professional level work experience in corrections; or a bachelor's degree and at least five (5) years of work experience in corrections. Provided, however, that for the position of Deputy Director of administrative services, professional level administrative experience may be substituted for work experience in corrections. The provisions of this act shall not apply to those presently serving as Deputy Director as herein defined.

SECTION 4. AMENDATORY 57 O.S. 2021, Section 509, as last amended by Section 2, Chapter 467, O.S.L. 2025 (57 O.S. Supp. 2025, Section 509), is amended to read as follows:

Section 509. A. The Department of Corrections is authorized to maintain the following facilities in this state:

1. Oklahoma State Penitentiary in McAlester;
2. Oklahoma State Reformatory in Granite;
3. Lexington Assessment and Reception Center in Lexington;
4. Jackie Brannon Correctional Center in McAlester;
5. Joseph Harp Correctional Center in Lexington;
6. Howard McLeod Correctional Center in Atoka;
7. Mack H. Alford Correctional Center in Stringtown;
8. Jim E. Hamilton Correctional Center in Hodgen;
9. Mabel Bassett Correctional Center in McLoud;
10. R.B. "Dick" Conner Correctional Center in Hominy;
11. James Crabtree Correctional Center in Helena;
12. Jess Dunn Correctional Center in Taft;
13. Northeast Oklahoma Community Corrections Center in Vinita;
14. John Lilley Correctional Center in Boley;
15. Dr. Eddie Warrior Correctional Center in Taft;
16. Clara Waters Community Corrections Center in Oklahoma City;
17. Lawton Community Corrections Center in Lawton;
18. Enid Community Corrections Center in Enid;
19. Union City Community Corrections Center in Union City;

20. Charles E. "Bill" Johnson Correctional Center in Alva; ~~and~~

21. ~~A facility purchased pursuant to the provisions of Enrolled House Bill No. 2780 of the 1st Session of the 60th Oklahoma Legislature~~ Great Plains Correctional Center in Hinton;

22. Allen Gamble Correctional Center in Holdenville; and

23. Chief James Smith Correctional Center in Lawton.

B. The Department shall be the legal successor of and, except as otherwise provided in the Oklahoma Corrections Act of 1967, shall have the powers and duties vested by law in the Office of Management and Enterprise Services in all matters relating to penal institutions, heretofore or hereafter established by the Department, which institutions and community corrections centers shall be under the administrative direction and control of the Department.

SECTION 5. REPEALER 57 O.S. 2021, Section 504.7, is hereby repealed.

SECTION 6. This act shall become effective November 1, 2026.

Passed the House of Representatives the 4th day of May, 2026.

Presiding Officer of the House
of Representatives

Passed the Senate the 27th day of April, 2026.

Presiding Officer of the Senate

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____

Approved by the Governor of the State of Oklahoma this _____

day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____